IN THE COURT OF THE HON'BLE DISTRICT JUDGE OF COIMBATORE

I.A.NO. OF 2024

H.M.G.O.P. NO. OF 2024

(In the matter of Minors Aarav Nayar and Aanya Nayar)

Mrs.Soumya Radharaman
Rep. by her Power Agent
Mr.C.R.Pankajakshan Nayar - Petitioner/Petitioner

-Vs-

1. Mr.Shyam Mohan Somasekaran
2. Mrs. Prabha Pankajakshan - Respondents/Respondents

AFFIDAVIT

I, Mr.C.R.Pankajakshan Nayar S/o. Late.Raman Raghavapanicker, aged 79 years, residing at D.No.45A, Bharathi Park Road II, Saibaba Colony, Coimbatore – 641011 do hereby solemnly affirm and state as follows:

1. I am the petitioner herein and Power Agent of petition in main petition. I know the facts of the case.

2. I submit that the petition mentioned property was originally belonged to one Pradeep Nair under Sale deed dated 26.10.1995 registered as Doc No.5227/1995 at SRO, Vadavalli. Whereas, the said Pradeep Nair died intestate on 19.09.2020 by leaving behind his wife the main petitioner herein, mother the second respondent herein and minor children namely Aarav Nayar as his legal heirs to succeed his estates.

3. I submit that now the wife and children of deceased Pradeep Nair are living in abroad and thereby there are unable to maintain the petition mentioned property and also they are in need of money for their education and thereby there are willing to sell it to 1st respondent herein for a sale price of Rs.60,00,000/- which is more than market value and if that property be sold for the said Sale price the minor will get

benefited and not only that as the property was at present not maintained due to non-occupation, the value of the property will get deteriorated.

4. At this juncture, the petitioner herein being mother of minor children is intending to sell the petition mentioned property to 1st respondent herein as aforesaid along with 2nd respondent herein. However, the petitioner herein is residing in USA along with her children and thereby she was not in a position to file the above case personally as such the petitioner herein executed a Power of Attorney dated 20.02.2024 registered as Doc.No.34/2024 by empowering me to deal with the aforesaid property including sale. As such, I hereby filed the above petition representing the petitioner as a Power Agent seeking permission to sell minor's share of property. I herewith enclosing the copy of Power of Attorney in support of this affidavit.

Therefore, I pray that this Hon'ble court may be pleased to pass an order by permitting me to appear on behalf of main petitioner as her Power Agent to proceed with the case and pass such other further order.

Solemnly affirm and signed
before me at Coimbatore on 12/6/2024

DEPONENT

ADVOCATE, COIMBATORE.

IN THE COURT OF THE HON'BLE DISTRICT JUDGE OF COIMBATORE

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Mr.C.R.Pankajakshan Nayar - Petitioner/Petitioner

-Vs-

1. Mr.Shyam Mohan Somasekaran
2. Mrs. Prabha Pankajakshan - Respondents/Respondents

PETITION FILED UNDER ORDER 3 RULE 2 OF CPC

I.PETITIONER/ PETITIONER:

Mrs. Soumya Radharaman W/o. Late. Pradeep Nayar, aged 41years,residing at D.No.691, West Valley Circle, Palatine, IL – 60067, USA represented by her Power Agent Mr.C.R.Pankajakshan Nayar S/o. Late.Raman Raghavapanicker, aged 79 years, residing at D.No.45A, Bharathi Park Road II, Saibaba Colony, Coimbatore - 641011.

The address for service of petitioner/petitioner is the same as above and under the care of her counsels Mr.S.Chandrasekaran MA.BL.DLL., and Mr.C.Jaiy Chandhar BA.LLB (Hons), Advocates, Coimbatore.

II. RESPONDENTS/ RESPONDENTS:

1. Mr.Shyam Mohan Somasekaran, S/o. K.P.Somasekharan, aged 42 years, residing at PWRA 164, KAILAS Meenchira Road, Ponekkara, Edappally, Cochin-682041.

2. Mrs. Prabha Pankajakshan, W/o. Mr.C.R.Pankajakshan Nayar, aged 69 years, residing at D.No.45A, Bharathi Park Road II, Saibaba Colony, Coimbatore 641011.

The address for service of respondents/respondents is the same as above.

For the reasons stated in the accompanying affidavit, the petitioner prays that this Hon'ble Court may be pleased to pass an order by permitting petitioner herein to appear on behalf of main petitioner as her Power Agent to proceed with the case and pass such other further relief, which this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

V. Sri

ADVOCATE FOR PETITIONER

IN THE COURT OF THE HON'BLE DISTRICT JUDGE OF COIMBATORE

I.A.NO. OF 2024

H.M.G.O.P. NO. OF 2024

(In the matter of Minors Aarav Nayar and Aanya Nayar)

Mrs.Soumya Radharaman

Rep. by her Power Agent

Mr.C.R.Pankajakshan Nayar

- Petitioner/Petitioner

-Vs-

1. Mr.Shyam Mohan Somasekaran
2. Mrs. Prabha Pankajakshan

- Respondents/Respondents

PETITION FILED UNDER ORDER 3 RULE 2 OF CPC

Pre.on: 13/6/2024

ADDRESS FOR SERVICE:
S.Chandrasekaran, M.A., B.L., DLL., (MS.595/1986)
C.Jaiy Chandhar, B.A., LLB., (Hons) (MS.1658/2020)
Advocates
85/12, 3rd Floor, Cherran Apartments,
Govt.Arts College Road,
Coimbatore – 641 018.
Off: 0422-2200337